



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing nine judgments on Tuesday 13 March 2018 and 30 judgments and / or decisions on Thursday 15 March 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 13 March 2018

[C.M. v. Belgium \(application no. 67957/12\)](#)

The applicant, C.M., is a French national who was born in 1927 and lives in Quiévrain (Belgium).

The case concerns C.M.'s complaint regarding the failure to enforce a judicial decision ordering his neighbour to carry out rehabilitation work in order to comply with the urban planning regulations.

In 1993 C.M.'s neighbour, T.R., obtained planning permission for a commercial property on land adjoining C.M.'s property. Construction of the building in question went ahead. In the meantime, in 1997, the *Conseil d'État* set aside the planning permission following an appeal by C.M. In 2009 T.R. was ordered by the Criminal Court to carry out alterations and demolition work in order to return the site to its designated use as courtyards and gardens. On 22 February 2011 the Mons Court of Appeal upheld that judgment and gave the neighbour one year in which to complete the work.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human Rights, C.M. complains of the failure to enforce the Mons Court of Appeal judgment of 22 February 2011.

[Adikanko and Basov-Grinev v. Russia \(nos. 2872/09 and 20454/12\)](#)

The applicants, Yevgeniy Nikolayevich Adikanko and Aleksandr Svyatoslavovich Basov-Grinev, are Russian nationals who were born in 1977 and 1952 respectively. Mr Adikanko lives in Omsk and Mr Basov-Grinev lives in Krasnodar (Russia).

The case concerns the domestic courts' refusal to entertain the applicants' claims on the grounds that they were not supported by evidence.

Relying on Article 6 § 1 of the Convention (right of access to a court), the applicants complain of the domestic courts' refusal to examine their applications because they did not submit evidence in support of their claims.

[Bezzubko and Others v. Russia \(nos. 24970/08 and 56354/09\)](#)

The applicants, Anton Aleksandrovich Bezzubko, Vladislav Vladimirovich Trubitsin and Aleksey Vladimirovich Kuznetsov, are Russian nationals who were born in 1981, 1961 and 1976 respectively. Mr Bezzubko and Mr Trubitsin live in Rostov-on-Don and Mr Kuznetsov lives in Kirov (Russia).

The case concerns the dismissal by the domestic courts of the applicants' appeals, on the grounds that they had been submitted after the expiry of the 10-day period laid down by the Code of Civil Procedure. The applicants individually contested, without success, the starting point for that period taken into account by the domestic courts.

Relying on Articles 6 § 1 (right of access to a court) and 13 (right to an effective remedy), and on Article 1 of Protocol No. 1 (protection of property), the applicants complain about the dismissal of their appeals, arguing that the domestic courts incorrectly applied the procedural rules in that regard.

[Mirovni Inštitut v. Slovenia \(no. 32303/13\)](#)

The applicant is a Slovenian private institute, based in Ljubljana, that carries out research work. The case concerns a decision refusing to award the institute government funding.

In 2003 the institute submitted a tender to the Ministry of Education, Science and Sport for an award to carry out a research project in the field of social sciences. The Ministry decided not to make the award and the institute brought proceedings before the Administrative Court, which dismissed the case in 2011. Further appeals to the Supreme Court and the Constitutional Court were also dismissed, with the latter decision being handed down in 2012.

Relying on Article 6 § 1 (right to a fair hearing), the institute complains that the proceedings on the decision not to award it funding were unfair. This was because there had been no oral hearing on its case and because the Administrative Court had in its reasoning simply repeated the opposing party's submissions, without taking into account evidence the institute had adduced.

[Stern Taulats and Roura Capellera v. Spain \(no. 51168/15\)](#)

The applicants, Enric Stern Taulats and Jaume Roura Capellera, are two Spanish nationals who were born in 1988 and 1977 and live in Girona and Banyoles.

The case concerns the conviction in criminal proceedings of two Spanish nationals for setting fire to a photograph of the royal couple in 2007.

In September 2007, while the King was on a visit to Girona, the applicants set fire during a public demonstration to a large photograph of the royal couple which they had placed upside down. As a result, they were sentenced to 15 months' imprisonment for insulting the Crown. The judge subsequently replaced that penalty with a fine of 2,700 euros each but ruled that, in the event of failure to pay the fine in whole or in part, the applicants would have to serve the prison term. That judgment was upheld by the *Audiencia Nacional* on 5 December 2008. When the judgment became final the applicants paid the fine. However, they lodged an *amparo* appeal with the Constitutional Court, which was dismissed.

Relying on Article 10 (freedom of expression), the applicants allege that the judgment finding them guilty of insulting the Crown amounted to unjustified interference with their right to freedom of expression.

[Vilches Coronado and Others v. Spain \(no. 55517/14\)](#)

The applicants, Mr Gregorio Ignacio Vilches Coronado, Ms Asunción Marco Conejero, Mr José Ignacio Vilches Marco and Ms María Ángeles Vilches Marco, are Spanish nationals who were born in 1937, 1936, 1964 and 1967 respectively and live in Valencia (Spain).

In May 2013 they were sentenced on appeal to three years' imprisonment for fraud committed against the State Treasury.

The case concerns the applicants' conviction following an appeal hearing, after they had been acquitted at first instance.

Relying on Article 6 § 1 (right to a fair trial), the applicants allege that the *Audiencia Provincial* amended the facts that had been found established at first instance. In the applicants' view, the hearing before the appellate court failed to satisfy the requirements of a fair trial.

Canşad and Others v. Turkey (no. 7851/05)

The applicants, Murat Canşad, Orhan Bingöl, and Abidin Doğan, are Turkish nationals who were born in 1974, 1973, and 1972. The case concerns criminal proceedings brought against them for throwing Molotov cocktails during a rally.

The rally took place in May 1995 in Istanbul with a group of about 15 people chanting slogans in favour of the Kurdistan Workers' Party (PKK). The group threw Molotov cocktails at shops, which caught fire, killing three teenage girls. In February 2002 all three applicants were found guilty of the charges brought against them and sentenced to death, commuted to life imprisonment. The Court of Cassation ultimately dismissed their appeal in December 2004.

Relying on Article 6 §§ 1 and 3 (c) (right to a fair trial / right to legal assistance of own choosing), the men allege that their trial was unfair because they did not have the assistance of a lawyer while in police custody and because the trial court then used the statements made in the absence of a lawyer to convict them. Under Article 6 § 1 and Article 13 (right to an effective remedy), they allege that the length of the criminal proceedings against them (over nine years and over eight years respectively for Mr Canşad and for Mr Bingöl) was excessive and that there was no effective remedy to contest the length of those proceedings. Under Article 6 § 3 (d) (right to obtain attendance and examination of witnesses), Mr Canşad alleges that he was not allowed to question a key witness in court.

Ebedin Abi v. Turkey (no. 10839/09)

The applicant, Ebedin Abi, is a Turkish national who was born in 1970. He is currently detained in the F-type prison in Kırıkkale (Turkey).

The case mainly concerns the applicant's diet while he was in detention in Erzurum Prison between 2008 and 2009. Mr Abi suffers from diabetes and coronary artery disease.

Relying on Articles 2 (right to life) and 5 (right to liberty and security), he complains that the meals served to him between 2008 and 2009 were incompatible with the diet that doctors had prescribed for him. He alleges that his health deteriorated as a result and complains of being detained in those circumstances.

Girişen v. Turkey (no. 53567/07)

The applicant, Deniz Girişen, is a Turkish national who was born in 1979 and is detained in Diyarbakır (Turkey).

The case concerns criminal proceedings brought against him for attempting to undermine the constitutional order of the State.

Mr Girişen was arrested in December 2001 on suspicion of being a member of an illegal organisation, Hizbullah. He confessed his involvement in the organisation to the police but later retracted and stated that he had been tortured into confessing, in particular by electric shocks to his testicles. He repeated his allegations at trial, but, on the basis of his statements to the police, he was ultimately convicted in June 2012 of attempting to undermine the constitutional order of the State and sentenced to over 16 years' imprisonment. The judgment was upheld in June 2014. The police officers who had allegedly ill-treated him were never prosecuted.

Relying on Article 6 §§ 1 and 3 (c) (right to a fair trial and right to legal assistance of own choosing), Mr Girişen alleges that his trial was unfair as he had been denied access to a lawyer at the pre-trial stage and that the length of the criminal proceedings against him was excessive. He also makes a number of allegations under Article 3 (prohibition of inhuman or degrading treatment) and Article 5 §§ 3 and 4 (right to liberty and security) to complain about his ill-treatment while in custody, the authorities' failure to investigate the police officers, the excessive length of his detention on remand and the lack of an effective domestic remedy to challenge the lawfulness of his detention.

Thursday 15 March 2018

Teymurazyan v. Armenia (no. 17521/09)

The applicant, Vardan Teymurazyan, is an Armenian national who was born in 1957 and lives in Yerevan. The case principally concerns his complaint that Armenian law did not provide for non-pecuniary compensation for ill-treatment and unlawful detention.

In April 2005 a criminal case was instituted against Mr Teymurazyan for assaulting two officers of the traffic police and he was held in remand for one and half months. He was acquitted in February 2006 after the court found it was the police officers themselves who had been violent and had injured him. The court also held that his arrest and detention had been unlawful. The police officers were never prosecuted as, in November 2006, the appeal court in the case found that it was not possible under Armenian law to reopen proceedings if the prosecuting authority had previously decided not to bring charges against the officers, as it had done in June 2005.

Mr Teymurazyan's civil claim for non-pecuniary damage was dismissed on the grounds that such compensation was not envisaged by domestic law.

Under Article 3 (prohibition of inhuman and degrading treatment), he alleges police ill-treatment and the lack of an effective investigation. He also complains that there is no legal provision for compensation for non-pecuniary damage for his ill-treatment or unlawful arrest and detention, in breach of Article 13 (right to an effective remedy) and Article 5 § 5 (right to liberty and security – right to compensation).

A.E.A. v. Greece (no. 39034/12)

The applicant, A.E.A., is a Sudanese national who was born in the Darfur region. He belongs to a non-Arab tribe.

The case concerns Greece's asylum procedure, which the applicant alleges was deficient at the time, and his living conditions in Greece.

A.E.A. stated that he left Sudan in 2003 after being tortured on account of his political views. He arrived in Greece in April 2009. According to his account, he was issued with an automatic expulsion order on his arrival. He was then allegedly prevented from having access to the asylum procedure, between April 2009 and July 2012. As a result, he lived like a homeless person in derelict buildings or with compatriots. In July 2012 the Greek authorities registered his asylum application, which was rejected in July 2013.

On an unspecified date A.E.A. left Greece and moved to France, where he applied for international protection.

Relying on Articles 3 (prohibition of torture and inhuman or degrading treatment) and 13 (right to an effective remedy), A.E.A. alleges deficiencies in the system operated by the Greek authorities for examining asylum applications, complaining in particular that his asylum application was not registered for three years (from April 2009 to July 2012). Under Article 3, he also complains of being left in a situation of complete destitution.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Nalbandyan and Danielyan v. Armenia (no. 325/10)

Bosanac v. Croatia (no. 79580/12)

Godler v. Croatia (no. 9440/12)
Gradinščak v. Croatia (no. 73009/13)
Gregurić v. Croatia (no. 45611/13)
Leštek v. Croatia (no. 18532/12)
Petek v. Croatia (no. 50000/12)
Smolić v. Croatia (no. 51472/12)
Georgiou and Others v. Greece (no. 6813/12)
Giaoutzi v. Greece (no. 47299/13)
M.D. v. Greece (no. 30275/17)
Maraggos v. Greece (no. 55418/15)
Vatos v. Greece (no. 56476/11)
Bosco and Others v. Italy (nos. 4996/14, 5009/14, 5018/14, 6158/14, 6349/14, 7484/14, 7515/14 and 7662/14)
Rizzello and Others v. Italy (nos. 17799/10, 27923/10, 67551/10, 18230/11, 37764/11, 47181/11, 65762/13, 11409/14 and 26949/14)
Gawrych and Others v. Poland (no. 28078/10)
Gęsina-Torres v. Poland (no. 11915/15)
Kostrzewski v. Poland (no. 60935/15)
Lejk v. Poland (no. 19445/10)
Nawrocki v. Poland (no. 60967/11)
Piotrowicz v. Poland (no. 1443/11)
Skalbaniok v. Poland (no. 26268/16)
Wójcik v. Poland (no. 19994/10)
Alivoryan v. Russia (no. 38372/13)
Korablev v. Russia (no. 43713/06)
Sergeyevy v. Russia (no. 35600/16)
Taşkaya v. Turkey (no. 14004/06)
Veremiyenko and Kutsmya v. Ukraine and Russia (nos. 64031/14 and 69094/14)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.